

ContractShield

Freelance Contract Checklist — 10 Clauses Before You Sign Anything

Every freelancer I know has a horror story — unpaid invoices, endless revisions, stolen work, scope that grew from a 2-week project to 6 months. Almost every case comes down to the same root cause: a weak or missing contract. This checklist covers the 10 clauses that protect you. Check each one before you sign.

PAYMENT TERMS

1. Payment Schedule & Milestones

Contract must specify exact amounts, due dates, and what triggers each payment. Never accept 'upon completion' as the only trigger — define 'completion' explicitly.

■ *Red flag: 'Net 60' or 'net 90' payment terms. These are designed to make you a free lender. Push for 50% upfront, remainder within 7 days of delivery.*

2. Late Payment Penalties

The contract must state that late payments incur a weekly or monthly fee (e.g. 1.5% per month). Without this, there is zero financial pressure to pay on time.

■ *Red flag: No mention of late fees. Add them. Clients who balk at this clause are telling you something important.*

SCOPE OF WORK

3. Detailed Deliverables List

Every deliverable must be named, described, and quantified. 'A website' is not a deliverable. '5-page responsive website with home, about, services, portfolio, contact' is.

■ *Red flag: Vague scope like 'ongoing support' or 'as needed.' These are scope-creep traps. Time-box or price separately.*

4. Revision Limits

Specify the number of revision rounds included (2-3 is standard) and the per-hour rate for additional revisions. Unlimited revisions = unpaid overtime.

■ *Red flag: 'Revisions until client is satisfied.' This is a time bomb. Replace with '2 rounds of revisions; additional at \$X/hour.'*

IP & OWNERSHIP

5. Intellectual Property Transfer Clause

IP should transfer to the client ONLY after full payment is received. Until then, you retain ownership. Include this explicitly — many contracts skip it.

■ *Red flag: 'Work made for hire' language that transfers IP immediately. Always tie transfer to payment completion.*

6. Portfolio & Credit Rights

Secure your right to showcase the work in your portfolio. Some clients (especially enterprise) will demand NDA-level secrecy. Know what you're agreeing to before you sign.

■ *Red flag: Blanket NDA that covers all deliverables with no portfolio carve-out. Negotiate a clause allowing anonymous or time-delayed portfolio use.*

TERMINATION

■ 7. Kill Fee / Cancellation Terms

If the client cancels, you keep all payments made plus a kill fee on work in progress. Standard kill fees: 25-50% of remaining balance.

■ *Red flag: Contract allows client to cancel with no financial penalty. They can ghost you after 3 weeks of work with zero consequence.*

■ 8. Non-Payment = License Revocation

Explicitly state that failure to pay in full revokes any license to use the work. This gives you legal standing to demand takedowns if they ghost you.

■ *Red flag: No mention of license revocation on non-payment. Without this you have limited recourse.*

COMMUNICATION & TIMELINE

■ 9. Client Responsibilities & Response SLA

Define what the client must provide (assets, approvals, feedback) and within what timeframe. A client who disappears for 3 weeks delays your project but still expects the same deadline.

■ *Red flag: No clause on client delays. Add: 'Client delays of 5+ business days extend the project timeline by an equal amount and may incur restart fees.'*

LEGAL

■ 10. Governing Law & Dispute Resolution

Specify which jurisdiction's law applies and how disputes are resolved (arbitration vs. court). If you're in the US, small claims court for disputes under \$10K is often faster and cheaper than arbitration.

■ *Red flag: Contract specifies client's home state (especially if it's different from yours). Push for your jurisdiction or a neutral one.*

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